

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC044939: JARED RYAN MILGRIM vs LARUB KEBAB LLC, et al.
07/06/2026 in Department 21
Motion to Strike Cross-Complaint (CCP 425.16); Demurrer; Motion to Strike (CCP 435-436)

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff/Cross-Defendant’s Special Motion to Strike Cross-Complaint; Demurrer; and Motion to Strike (*Unopposed*)

Tentative Ruling: Plaintiff/Cross-Defendant’s motions are all DENIED without prejudice to refile complying with proper filing procedures.

Plaintiff/Cross-Defendant’s filing is procedurally defective because it attempts to present an anti-SLAPP motion, a demurrer, and a motion to strike in a single, procedurally confusing omnibus motion. The California Rules of Court allow certain motion papers to be combined if the combined filing specifies the items separately in the caption. (Cal. Rules of Court, rule 3.1112(c).) Here, although Plaintiff/Cross-Defendant identified the three motions in the caption, that does not end the inquiry. Caption identification does not excuse noncompliance with the formatting rules, page limits, notice requirements, or the distinct procedural requirements applicable to each separate form of relief. Plaintiff/Cross-Defendant’s status as a self-represented litigant does not exempt him from compliance with the Code of Civil Procedure, the California Rules of Court, local rules, or this Court’s orders.

The defect is not merely technical. A demurrer, a conventional motion to strike, and an anti-SLAPP motion are distinct procedural devices. A demurrer is governed by its own pleading-challenge procedures, including requirements that grounds be stated distinctly and that the hearing be set within the prescribed rule. (Cal. Rules of Court, rule 3.1320.) A motion to strike is governed by rule 3.1322 and must identify the material to be stricken. An anti-SLAPP motion is a statutory special motion to strike under CCP § 425.16, with its own deadline, hearing procedures, burden-shifting analysis, discovery stay, fee-shifting consequences, and appeal rights. (CCP § 425.16(b), (c), (f), (g), (i).) Combining those three requests in one presentation,

while also submitting an overlength and improperly formatted memorandum, obscures what standard applies, what evidence may be considered, what relief is sought, and what opposition is required.

Plaintiff/Cross-Defendant's memorandum is improperly single-spaced. California Rules of Court, rule 2.108 requires lines on each page to be one-and-one-half spaced or double-spaced, subject only to limited exceptions such as real property descriptions, footnotes, quotations, and certain printed forms. Plaintiff/Cross-Defendant's memorandum does not fall within those exceptions.

The spacing violation is material. Plaintiff/Cross-Defendant submitted an 11-page single-spaced memorandum, which is approximately equivalent to 22 pages if double-spaced. Except for summary judgment or summary adjudication motions, an opening or responding memorandum may not exceed 15 pages unless the Court grants prior permission. (Cal. Rules of Court, rule 3.1113(d), (e).) A party seeking leave to file a longer memorandum must make the required application before the memorandum is due and must explain why the argument cannot be made within the applicable page limit. (Cal. Rules of Court, rule 3.1113(e).) A memorandum exceeding the applicable page limit must be filed and considered in the same manner as a late-filed paper. (Cal. Rules of Court, rule 3.1113(g).)

The Court cannot permit Plaintiff/Cross-Defendant to avoid the page limits through improper formatting. Single-spacing a memorandum gives Plaintiff/Cross-Defendant nearly twice the argument space allowed to other litigants, while requiring the opposing party and the Court to address an overlength brief disguised as a compliant filing. That is especially unfair where Plaintiff/Cross-Defendant has combined three separate motions into one filing. The combined presentation and single-spaced memorandum burden the opposing party, consume additional law-and-motion time, and interfere with the Court's orderly management of its docket.

For these reasons, the Court requires Plaintiff/Cross-Defendant to comply with the same procedural and formatting rules that govern every litigant. Plaintiff/Cross-Defendant's self-represented status does not excuse noncompliance. The Court disregards the improperly formatted, overlength memorandum and denies the omnibus motions without prejudice on procedural grounds.

Plaintiff/Cross-Defendant is admonished that future noncompliant filings may result in sanctions after proper notice and an opportunity to be heard. California Rules of Court, rule 2.30 authorizes sanctions for violations of the California Rules of Court in civil cases. CCP § 177.5 authorizes monetary sanctions, payable to the court and not exceeding \$1,500, for violation of a lawful court order without good cause or substantial justification. CCP § 128.5 authorizes sanctions for bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. CCP § 128.7 applies to signed pleadings, motions, and similar papers and authorizes sanctions where the required certifications are violated, subject to its procedural requirements.

Accordingly, Plaintiff/Cross-Defendant is expressly warned that any future filing that combines procedurally distinct motions in a confusing or rule-evading manner, violates applicable formatting or page-limit rules, fails to provide proper notice of the relief sought, or otherwise

disregards the Court's procedural requirements may result in sanctions, including monetary sanctions, attorney's fees and costs where authorized, and any other relief the Court deems appropriate after notice and an opportunity to be heard.

Plaintiff/Cross-Defendant's omnibus motions are DENIED without prejudice.

Plaintiff/Cross-Defendant to give notice.